
IN THE FOURTH JUDICIAL DISTRICT, PROVO DEPARTMENT
IN AND FOR UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**SUPPLEMENTAL EXHIBIT TO RULE 8
DECLARATION
OF MICHAEL N. BURT**

Case No. 251403576

Judge Tony F. Graf Jr.

Pursuant to Rule 8 of the Utah Rules of Criminal Procedure, please find attached a Supplemental Exhibit to undersigned counsel's Rule 8 Declaration, consisting of a current curriculum vitae.

DATED this 28th day of September, 2025.

/s/ Michael N. Burt

CERTIFICATE OF SERVICE

I hereby certify that on this 28th day of September, 2025, I caused a true and correct copy of the foregoing **SUPPLEMENTAL EXHIBIT TO RULE 8 DECLARATION OF MICHAEL N. BURT** to be filed via electronic filing, which provides automatic notice to the prosecution of record.

/s/ Kathryn Nester

Michael N. Burt
Law Office of Michael Burt
1000 Brannan Street Suite 400
San Francisco, California 94103
415-522-1508 phone
415-522-1506 fax
mb@michaelburtlaw.com

EMPLOYMENT

- | | |
|----------------|--|
| 2003 - Present | Private Practitioner
I am currently a solo practitioner specializing in all aspects of the defense of capital cases and cases involving mental health, intellectual disability, and forensic science issues. |
| 2001- Present | Federal Death Penalty Resource Counsel
I currently serve, along with thirteen other capital defense counsel throughout the country, as Federal Death Penalty Resource Counsel. I assist court-appointed and defender attorneys charged with the defense of capital cases in the federal courts. The Project is funded and administered under the Criminal Justice Act by the Defender Services Division of the Administrative Office of the United States Courts. |
| 2002- 2004 | Mexican Capital Legal Assistance Project Counsel
I represented the government of Mexico in a nationwide legal assistance program for Mexican nationals accused or convicted of capital crimes. |
| 1989 - 2002 | Head Trial Attorney,
San Francisco Public Defender's Office
I was responsible for all aspects of representation in capital cases, including extensive pretrial motion and appellate work, supervision, training, and lead attorney trial practice as well as general supervision of all forensic science cases. |

- 1983 - 1989 Principal Trial Attorney,
San Francisco Public Defender's Office
My responsibilities included representation in capital and noncapital homicide cases, as well as complex sexual assault cases.
- 1982 - 1983 Senior Trial Attorney,
San Francisco Public Defender's Office
My responsibilities included representation primarily in complex sexual assault cases.
- 1979 - 1982 Trial Attorney, San Francisco Public Defender's Office
My responsibilities included representation in serious felony cases.
- 1978 - 1979 Trial Attorney, San Joaquin County Public Defender's Office
My responsibilities included representation in misdemeanor cases. In total, I have tried over fifty cases to a jury, including five lengthy capital cases and over a dozen in which the principal charge was murder.

EDUCATION

- 1978 J.D., cum laude, State University of New York at Buffalo
- 1974 B.A., summa cum laude, State University of New York at Albany

PROFESSIONAL

- 1994-Present Editorial Board, Forecite: Latest Developments in Criminal Jury Instructions (2013 ed.)
- 2007-2010 Member, California Crime Laboratories Task Force
- 1993- 2003 Editor-in-Chief, California Death Penalty Defense Manual (1993 and 1998 Eds. with 1999-2003 supps.), California Attorneys for Criminal Justice and the California Public Defenders Association

1985 - 1992	Member, California Attorneys for Criminal Justice/California Public Defenders Association Death Penalty Seminar Planning Committee
1991	Co-Chairperson, California Attorneys for Criminal Justice/California Public Defenders Association Death Penalty Seminar Planning Committee
1985	Certified Criminal Law Specialist
1978	Admitted to the California Bar

CAPITAL CASE EXPERIENCE

The capital or special circumstance murder cases in which I have been appointed lead or learned counsel or served as Resource Counsel include:

United States v. Jose Aguilar (RICO, murder, and conspiracy capital murder case in the Northern District of California; pretrial litigation resulted in Attorney General not seeking the death penalty)

United States v. Michael Miske (RICO, murder, and conspiracy capital murder case in the District of Hawaii; pretrial litigation resulted in Attorney General not seeking the death penalty)

United States v. Carlo Wilson (RICO, murder, and conspiracy capital murder case in the Eastern District of Michigan; pretrial litigation resulted in Attorney General not seeking the death penalty)

United States v. Donald Fell (capital murder retrial case in the District of Vermont involving the kidnapping and carjacking of one victim and the murder of two others; government withdrew notice of intent to seek the death penalty after four years of post-reversal litigation)

United States v. Gary Sampson (capital murder retrial case in the District of Massachusetts involving the death of two carjacking victims and the murder of a third victim; four month penalty phase retrial ended in a split verdict)

United States v. Naeem Williams (capital murder case in the District of Hawaii involving the child abuse/torture murder of five year old victim on military reservation; life verdict after five month trial)

United States v. John McCluskey (multiple capital murder case in the District of New Mexico involving an Arizona escapee who allegedly committed two murders in New Mexico; life verdict after four month trial)

United States v. Ronell Wilson (capital murder retrial case in the Eastern District of New York involving the killing of a police detective; successfully litigated an intellectual disability claim to prevent the death penalty)

United States v. Christopher Ablett (RICO, murder, conspiracy capital murder case in the Northern District of California involving the Mongols motorcycle gang ; pretrial litigation resulted in Attorney General not seeking the death penalty)

United States v. Anton Lewis (multiple murder arson case in the Northern District of Ohio; client found intellectually disabled following extensive pretrial hearing)

United States v. Erick Lopez (RICO, murder, conspiracy capital murder case in the Northern District of California involving the MS-13 gang; mitigation presentation re client's intellectual disability resulted in Attorney General not seeking the death penalty)

United States v. Dominic Stewart (murder case at ADX Florence prison complex prosecuted in the District of Colorado; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Donald Taylor (RICO, murder, conspiracy case involving the Aryan Brotherhood prison gang in the District of New Mexico; negotiated disposition on eve of trial for life sentence)

United States v. Earl Davis (murder case involving armored car heist in the District of Maryland; client found intellectually disabled following extensive pretrial hearing)

United States v. Edgar Diaz (RICO, multiple murder, conspiracy case involving an African American street gang; negotiated disposition on eve of trial for 40 year sentence in the Northern District of California)

United States v. David George (RICO, multiple murder, conspiracy case involving an African American street gang in the Northern District of California; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Kevin Gonzalves (RICO, murder, conspiracy case involving a gambling organization in the District Court of Hawaii; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Eric Robert Rudolph (Birmingham abortion clinic, Olympic Park and other bombings; negotiated life sentence in the Northern District of Alabama)

United States v. Eng Yong Feng (RICO, conspiracy case involving alleged Asian gang in the Northern District of California; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Alquin Oregana (drug conspiracy, murder case in the Northern District of California; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Barry Mills (RICO, multiple murder, conspiracy case involving the Aryan Brotherhood prison gang in the Central District of California)

United States v. Shango Greer (RICO, multiple murder, conspiracy case involving the Pitch Dark Family gang in the Eastern District of California; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Jacob Enriquez (RICO, multiple murder, conspiracy case involving the Nuestra Familia prison gang in the Northern District of California; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Walter Pierre Rausini (drug conspiracy, continuing criminal enterprise, and double murder capital case settled for a forty year term in the Northern District of California)

United States v. Shi Lei (murder and mutiny on the high seas in the District of Hawaii; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Bryson Jose (murder on a military reservation in the District of Hawaii; mitigation presentation resulted in Attorney General not seeking the death penalty)

United States v. Robert Bowers (federal hate crime prosecution in the Western District of California; I assisted the federal Defender and appointed learned counsel in presenting mental health evidence; death sentence currently pending appeal)

People v. Edenilson Alfaro (MS-13 gang killing capital murder case in Marin County; extensive pretrial litigation resulted in prosecution dropping request for the death penalty)

People v. Melissa Huckaby (murder of a twelve year old and rape with a foreign object in San Joaquin County; negotiated disposition to a life sentence)

People v. Ray Boudreau (cop killing by Black Panther Party member in San Francisco County; charges dismissed after extensive pretrial litigation)

People v. Jehad Baqleh (murder and rape in San Francisco County; mentally retarded client found incompetent to stand trial and then not guilty by reason of insanity)

People v. Cary Stayner (multiple murder of Yosemite tourists in Mariposa County; six month capital trial in Santa Clara County on a change of venue resulted in death verdict)

People v. Robert Nawi (2001 murder for hire case in San Francisco County involving challenge to DNA, fingerprint and handwriting evidence; death penalty allegation stricken prior to twelve month trial)

People v. Felton Kittling (extensive multi-defendant DNA admissibility hearing resulted in first successful challenge to STR DNA evidence in the United States; special circumstance stricken on pretrial motion)

People v. Mendes Stanley Brown (following extensive pretrial motion litigation, including complex jury composition challenge, this robbery murder capital case in San Francisco ended in a negotiated life sentence in 1997)

People v. Lyle Menendez (in 1993, I took a leave of absence from my office to participate in the first trial of a Los Angeles capital case involving two brothers

accused of murdering their wealthy parents. The jury hung six to six on issues of guilt)

People v. Richard Ramirez (alleged serial killer facing capital charges in San Francisco after conviction of 13 murders in Los Angeles; negotiated agreement not to pursue case until after appeal in LA case)

People v. Charles Ng (alleged serial killer facing murder charges in San Francisco and Orange counties. I represented this client beginning in 1985, including an appearance before the Supreme Court of Canada to assist Canadian counsel in presentation of an international law extradition defense)

People v. William Melvin White (torture and multiple murder prosecution in San Francisco County. The jury returned a life verdict after a ten-month trial ending in 1991 in which over 50 defense penalty phase witnesses portrayed my intellectually impaired client as the victim of extensive parental sexual and physical abuse and a good candidate for institutional adjustment)

People v. Brian Thompson (rape-murder prosecution of 19-year-old defendant for sexual assault and murder of his 64-year-old adoptive grandmother in San Francisco County. The special circumstance was stricken on pretrial motion and a verdict of not guilty by reason of insanity was obtained in 1988)

People v. Willie Bolds (burglary and murder of an elderly victim in San Francisco. The case was resolved by a life without parole disposition mid-trial in 1987)

People v. Philip and Velma Henderson (I represented the husband in this prosecution of a couple charged with quadruple murder in San Francisco County. The jury returned a life without parole verdict after a seven-month trial ending in 1986 in which mitigation evidence focused on institutional adjustment, parental neglect, and lingering doubt. My preparation of this case began in 1982).

APPELLATE EXPERIENCE

Published Cases

Alfaro v. Superior Ct. of Marin Cty., 58 Cal. App. 5th 371 (2020)
Andrews v. Davis, 944 F.3d 1092 (9th Cir. 2019)(*en banc*)
United States v. Fell, 737 F. App'x 37 (2d Cir. 2018)
United States v. Johnson, 764 F.3d 937 (8th Cir. 2014)
Angela Johnson v. United States, 860 F.Supp.2d 663 (ND Iowa 2012)
In re Andrews (2002) 28 Cal 4th 1234
Baqleh v. Superior Court (2002) 100 Cal.App.4th 478
Ng v. Superior Court (1992) 4 Cal.4th 29
Menendez v. Superior Court (1992) 3 Cal.4th 435
White v. Roper (9th Cir. 1990) 901 F.2d 1501
Simmons v. Municipal Court (1980) 109 Cal.App.3d 15

Cases in Which I Have Served as a *Strickland* (Legal Malpractice) Expert

Cargill v. Davis (E.D. Tx. No.17-CV-00562)(declaration)
Mickey v. Woodford (N.D. Cal. No. 93-0243)(declaration and evidentiary hearing testimony)
Billy Ray Hamilton v. Calderon (N.D. Cal. No. 89-3578)(declaration and evidentiary hearing testimony)
Daniels v. Calderon (C.D. Cal. No. 92-4683)(declaration)
Heisman v. Calderon (N.D. Cal. No. 90-1815)(declaration)
Jennings v. Calderon (N.D. Cal. No. 89-01360)(declaration, deposition, and evidentiary hearing testimony)
Johnson (Laverne) v. Calderon (N.D. Cal. No. 95-305)(declaration)
Taylor v. Calderon (N.D. Cal. No. 92-1627)(declaration)
Thomas v. Calderon (N.D. Cal. No. 93-0616)(declaration)
In re William Clark (Cal. Sp. Ct. No. S022475)(declaration)
In re Calvin Coleman (Cal. Sp. Ct. No. S02349)(declaration)
In re Davis (Cal. Sp. Ct. No. S014636)(declaration)
In re Kenneth Earl Gay (Cal. Sp. Ct. No. S004699)(declaration and evidentiary hearing testimony)
In re Larry Lucas (Cal. Sp. Ct. No. S050142) (declaration and evidentiary hearing testimony)
In re Raley (Cal. Sp. Ct. No.S005870)(declaration)
People v. Howard Bloomgarden (LA Sup. Ct. No. BA 128564)(evidentiary hearing testimony)

OTHER POST- CONVICTION EXPERIENCE

Angela Johnson v. United States, 860 F.Supp.2d 663 (ND Iowa 2012)(appointed lead counsel in 2255 evidentiary hearing involving first woman sentenced to death under Federal Death Penalty Act; court granted relief based on ineffective assistance of trial counsel)

Misskelley v. State of Arkansas (intellectually disabled client convicted of multiple murder and sexual abuse of three children; post conviction evidentiary hearing led to release of client in 2011)

Carroll v. State of Alabama (Sumter Co. Ala.) (At request of Southern Center for Human Rights, I served as *pro bono* state post conviction counsel for an indigent Alabama death row inmate who died while case was pending)

Andrews v. Davis, 944 F.3d 1092 (9th Cir. 2019)(*en banc*)(In 1993, I was retained by the State Public Defender to act as lead counsel in an evidentiary hearing ordered by the Supreme Court in the Los Angeles Superior Court. I was subsequently appointed as lead counsel in federal habeas corpus proceedings which resulted in reversal of penalty phase verdict by the en banc Ninth Circuit.)

PUBLICATIONS RELATING TO CAPITAL LITIGATION OR FORENSIC SCIENCE

“How Scientific Is Forensic Science”, *The Champion*, August 2009

“The Importance of Storytelling At All Stages of a Capital Case”, 77 *University of Missouri Kansas City Law Review* 877 (2009)

“Effective Capital Representation in the Twenty-First Century,”(Feb. 1998, 1999, 2000, 2001, 2002, and 2003 Ed.) 1 California Death Penalty Defense Manual.

“Motions and Record Preservation,” (Feb. 1998, 1999, 2000, 2001, 2002, and 2003 Ed.) 1 California Death Penalty Defense Manual.

“Penalty Phase Instructions,” (Feb. 1998, 1999, 2002, 2001, 2002 and 2003 Ed.) 1 California Death Penalty Defense Manual.

“Mitigation Evidence Twenty Years After Lockett,” (Feb. 1998 Ed.) 3 California Death Penalty Defense Manual.

“Assessment of Client Competence: A Suggested Approach,” (June 1998) The Champion, Vol. XXII No.5, p. 18.

“Effective Capital Representation in the 90s,” (1993) Forum, Vol. 20, No. 2, p. 237.

“Overview: Effective Capital Representation in the Nineties,” (Feb. 1993 Ed.) 1 California Death Penalty Defense Manual .

“Penalty Phase Jury Instructions,” (Feb. 1993 Ed.) 1 California Death Penalty Defense Manual.

“Penalty Phase Evidence: Some Observations, Case Materials and Recommended Reading for Oregon Lawyers,” published in Oregon Criminal Defense Lawyers Association, Defending Death Penalty Cases (1988 ed.).

“Discovery in Death Penalty Cases,” 7 San Francisco Barrister Law Journal 9 (1988).

PRESENTATIONS RELATING TO CAPITAL LITIGATION OR FORENSIC SCIENCE

"Understanding and Litigating the Young Brain", 2022 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2022, Monterey, California

"Understanding and Litigating the Adolescent Brain", 2021 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2021, Monterey, California

“Understanding and Litigating the Adolescent Brain”, 2019 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2019, Monterey, California

“The case of Donald Fell: debrief”, 2018 Federal Capital Defense Strategy Session, November 2018, Tampa, Florida

“Mental Health Litigation Challenges”, 2017 Federal Capital Defense Strategy Session, Oct. 2017, San Diego, California

“Thinking Strategically About Rule 12.2 ”, 2017 Federal Death Penalty Resource Counsel Project Capital Defense ACT Training, May, 2017, St. Louis, Missouri

“Intellectual Disability: Atkins, Hall, and Brumfield”, 2016 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb. 2016, San Diego, California

“Preparing to and Cross Examining A Government Forensic Expert”, 2016 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb. 2016, San Diego, California

“What We’ve Learned from A Second Look At Cases”, 2015 Federal Capital Defense Strategy Session, Oct. 2015, Ft. Lauderdale, Florida

"Mental Health Experts At Trial ", 2015 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2015, Monterey, California

"Challenges In The Use of Neuroimaging ", 2015 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2015, Monterey, California

“Investigating and Choosing Experts”, 2014 Federal Capital Defense Strategy Session, Nov. 2014, Albuquerque, New Mexico

“What is Mental Retardation ? ”, 2013 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2013, Monterey, California

“Litigating *Atkins* Claims”, 2013 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2013, Monterey, California

“Litigating *Atkins* Claims”, 2012 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2012, Monterey, California

“Adaptive Functioning”, 2012 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2012, Monterey, California

“Best Trial Practices – What We're Learning from Experience”, 2011 Federal Capital Defense Strategy Session, Nov. 2011, New Orleans, Louisiana

“Lessons From Recent Cases”, 2011 Federal Death Penalty Resource Counsel Project Capital Defense Strategy Session, Nov. 2011, New Orleans, Louisiana

“Winning *Atkins* Hearings”, 8th National Seminar on the Development and Integration of Mitigation Evidence”, Habeas Assistance and Training Counsel Seminar, March 31, 2011, Chicago, Illinois

“Challenging Firearm and Toolmark Evidence”, 2011 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2011, Monterey, California

“Prosecution Mental Health Examinations”, 2011 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2011, Monterey, California

“Investigating and Presenting Intellectual Disabilities”, 2010 Federal Capital Defense Strategy Session, Nov. 2010, Austin, Texas

“Navigating and Litigating Rule 12.2”, 2010 Federal Capital Defense Strategy Session, Nov. 2010, Austin, Texas

“Using the NAS Reports to Challenge Forensic Evidence”, 2010 Federal Capital Defense Strategy Session, Nov. 2010, Austin, Texas

“Investigating and Presenting Intellectual Disability and Cognitive Functioning Claims”, 2010 Federal Death Penalty Resource Counsel Authorized Case Training, June 2010, New Orleans, Louisiana

“Firearm and Toolmark Evidence”, 2010 Litigating Non-DNA Post-Conviction Innocence Cases, National Association of Criminal Defense Lawyers, April 2010, Atlanta, Georgia

“Using the NAS Report on Forensic Science in Post-Conviction”, 2010 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2010, Monterey, California

“Anticipating Rebuttal of Mental Health Experts and Preparing for Cross”, 2010 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2010, Monterey, California

“Litigation Responses to the NAS Report”, Sixth National Seminar on Forensic Evidence and the Criminal Law”, Jan., 2010, San Diego, California

“Rule 12.2 Litigation”, 2009 Federal Capital Defense Strategy Session, Nov. 2009, Nashville, Tennessee

“Federal Lessons for State Cases”, 2009 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2009, Monterey, California

“Prosecution Mental Health Examinations”, 2009 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2009, Monterey, California

“Challenging the Prosecution’s DNA Evidence: Discovery and Litigation Strategies”, Fifth National Seminar on Forensic Evidence and the Criminal Law”, Jan., 2009, Philadelphia, Pennsylvania

“Discovery Issues in Federal Capital Cases”, 2008 Federal Capital Defense Strategy Session, Nov. 2008, Phoenix, Arizona

“Emerging and Recurring Issues in Psychological Testing”, 2008 Federal Capital Defense Strategy Session, Nov. 2008, Phoenix, Arizona

“Junk Science”, NACDL & CACJ’s Forensic Science Seminar, April 2008, Las Vegas, Nevada

“Investigating and Choosing Experts”, 2008 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2008, Monterey, California

“Future Dangerousness Challenges”, 2008 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2008, Monterey, California

“Scorched Earth Aggressive Strategies for Resolving Even the Most Difficult Cases”, 2007 Federal Capital Defense Strategy Session, Nov. 2007, Baltimore, Maryland

“Thinking More Critically About the Government’s Scientific Evidence”, 2007 Federal Capital Defense Strategy Session, Nov. 2007, Baltimore, Maryland

“The Current State of Disarray in Forensics”, 2007 Montana Public defender Statewide Conference, Aug. 2007, Livingston, Montana

“Issues Related to Mental Health–12.2 Litigation and Beyond”, 2007 Federal Resource Counsel Regional Training, Jan. 2007, Baltimore, Maryland

“Pseudoscience v. Real Science: Exposing Prosecution Junk Science”, Motions, Evidence, and Expert Witnesses, The Center for American and International Law, May 2006, Plano, Texas

“Defending A Direct Death Penalty Case”, 2006 Federal Public Defender/Administrative Office of the Court Conference, Jan. 2006, Los Angeles, California

“Understanding and Evaluating Fingerprint Evidence”, Third National Seminar on Forensic Evidence and the Criminal Law, Jan. 2006, San Antonio, Texas

“Fingerprint Evidence”, 2006 Community Defender’s, Inc. of San Diego Seminar: Investigate Your Case: CSI for Lawyers, Jan. 2006, San Diego, California

“ Getting the Funds You Need: Litigating Funding Issues in Light of Wiggins v. Smith”, 2005 Mexican Capital Legal Assistance Project Seminar, Nov. 2005, Santa Monica, California

“ Using Attorneys as Strickland Experts”, 2005 NAACP Legal Defense Fund Annual Capital Punishment Conference, July, 2005, Airlie, Virginia

“How to Distinguish Pseudoscience from Real Science”, 2005 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2005, Monterey, California

“Challenging Fingerprint Evidence”, 2005 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2005, Monterey, California

“ Getting the Funds You Need: Litigating Funding Issues in Light of Wiggins v. Smith”, 2004 Mexican Capital Legal Assistance Project Seminar, Nov. 2004, San Francisco, California

“Getting The Most Out of Your Experts”, 2004 Oregon Criminal Defense Lawyers Association Death Penalty Seminar, October 22, 2004, Warm Springs, Oregon

“How To Cross Examine The State’s Experts”, 2004 Oregon Criminal Defense Lawyers Association Death Penalty Seminar, October 22, 2004, Warm Springs, Oregon

“Before You Call an Expert: The Art of Self Education”, 2004 NAACP Legal Defense Fund Annual Capital Punishment Conference, July, 2004, Airlie, Virginia

“Challenging and Presenting the Testimony of Forensic Experts”, 2004 Capital Trial Advocacy Program, Texas Criminal Defense Lawyers Project, April 2004, Plano, Texas

“Winning Issues From Recent Legal Developments”, 2004 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2004, Monterey, California

“Developments in Federal Death Penalty Litigation”, 2004 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2004, Monterey, California

“Challenging and Presenting the Testimony of Forensic Experts”, 2003 Capital Trial Advocacy Program, Texas Criminal Defense Lawyers Project, July 2003, Plano, Texas

“Everything You Need Is Already at Your Fingertips: Finding Witnesses, Jurors, and Everything Else on the WEB, 2003 NAACP Legal Defense Fund Annual Capital Punishment Conference, July, 2003, Airlie, Virginia

“Dealing with New Government Attacks: *Daubert* and Social Science”, 2002 NAACP Legal Defense Fund Annual Capital Punishment Conference, July, 2002, Airlie, Virginia

“Winning Issues From Recent Legal Developments”, 2002 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2002, Monterey, California

“Addressing DNA That Implicates Your Client,” 2002 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2002, Monterey, California

“Challenging the Testimony of Forensic Experts”, 2002 Capital Trial Advocacy Program, Texas Criminal Defense Lawyers Project, January 2002, Austin, Texas

“Challenging the Testimony of Forensic Experts”, 2002 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2001, Monterey, California

“Dealing with Scientific Evidence in Guilt Phase Using Today’s Technology”, Los Angeles Public Defender Death Penalty Training Seminar, October 13, 2001", Los Angeles, California

“Preparing Defense Mental Health Experts to Withstand Prosecution Cross Examination”, Los Angeles Public Defender Death Penalty Training Seminar, October 13, 2001", Los Angeles, California

“Daubert Hearings on Fingerprint Evidence: A New Model for Challenging Junk Science”, 2001 Kentucky Department of Public Advocacy Annual Seminar, June, 2001, Lexington, Kentucky

“Daubert Hearings on Ballistics Evidence”, 2001 Kentucky Department of Public Advocacy Annual Seminar, June, 2001, Lexington, Kentucky

“Challenging DNA That Implicates Your Client, 2001 Kentucky Department of Public Advocacy Annual Seminar, June, 2001, Lexington, Kentucky

“Winning Issues From Recent Legal Developments”, 2001 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2001, Monterey, California

“Addressing DNA That Implicates Your Client,” 2001 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2001, Monterey, California

“Preparing Defense Mental Health Experts to Withstand Cross Examination” 2001 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2001, Monterey, California

“Challenging Fingerprint Identification Testimony under *Daubert*”, Indiana Public Defender Council Training Seminar, December 14, 2000, Indianapolis, Indiana

“Challenging Fingerprint Identification Testimony under *Daubert*”, Indiana Public Defender Council Training Seminar, December 14, 2000, Indianapolis, Indiana

“Legal Challenges to Expert Witnesses”, California Public Defender Association Training Seminar, October 7, 2000, Monterey, California

“Working With Defense Experts in a Death Penalty Case”, Los Angeles Public Defender Death Penalty Training Seminar, September 2000, Los Angeles, California

“Responding to a Prosecution *Kelly-Frye* Challenge”, Los Angeles Public Defender Death Penalty Training Seminar, June, 2000, Los Angeles, California

“Effectively Exposing Reasonable Doubt: Fingerprints As Junk Science” , 2000 NAACP Legal Defense Fund Annual Capital Punishment Conference, July, 2000, Airlie, Virginia

“Preparing And Litigating a *Kelly-Frye* Challenge to DNA Evidence”, Los Angeles Public Defender Training Seminar, June, 2000, Los Angeles, California

“Forensics as Mitigation,” 2000 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb. 2000, Monterey, California

“Deconstructing Antisocial Personality Disorder Diagnosis,” 2000 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb. 2000, Monterey, California

“Addressing DNA That Implicates Your Client,” 2000 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 2000, Monterey, California

“Investigating, Pleading, and Proving State Misconduct Claims,” The National Habeas Corpus Seminar, Federal Defender’s Training Group, Aug., 1999, Atlanta, Georgia.

“Attacking the Heart of the State’s Case: DNA,” The National Habeas Corpus Seminar, Federal Defender’s Training Group, Aug., 1999, Atlanta, Georgia.

“Deconstructing Antisocial Personality Disorder Diagnosis,” 1999 Death Penalty College, Santa Clara University School of Law, August, 1999, Santa Clara, California

“Theories for Life: Guilt and Penalty Phase,” 1999 New York Capital Defenders Office Training Seminar, May, 1999, White Plains, New York

“Penalty Phase Litigation,” 1999 New York Capital Defenders Office Training Seminar, May, 1999, White Plains, New York

“Winning Issues From Recent Developments,” 1999 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1999, Monterey, California

“Jury Instructions: The Cutting Edge,” 1999 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1999, Monterey, California

“Deconstructing Antisocial Personality Disorder Diagnosis,” 1999 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1999, Monterey, California

“Assessment of Client Competence in a Capital Case,” 1998 American Academy of Psychiatry and Law Seminar, June, 1998, Long Beach, California

“Recent Legal Developments in Capital Cases,” 1998 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1998, Monterey, California

“Victim Impact Issues,” 1998 CACJ/CPDA Annual Death Penalty Defense Seminar, Monterey, Feb., 1998, California

“Why Americans Embrace the Death Penalty and What Makes Them Pause to Impose It,” 1997 NAACP Legal Defense Fund Annual Capital Punishment Conference, July, 1997, Airlie, Virginia

“The Hows and Whys of Motions in a Capital Case,” 1997 New York Capital Defenders Office Training Seminar, June, 1997, Rochester, New York

“Recent Legal Developments in Capital Cases,” 1997 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1997, Monterey, California

“Developing a Life History,” 1997 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1997, Monterey, California

“Recent Legal Developments in Capital Cases,” 1996 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1996, Monterey, California

“Litigation of Aggravating Evidence in Capital Cases,” 1996 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1996, Monterey, California

“Simpson Fallout, Social Science and the Future,” 1995 NAACP Legal Defense Fund Annual Capital Punishment Conference, July, 1995, Airlie, Virginia

“Integrating Guilt and Penalty Phase Themes,” 1995 New York Capital Defenders Office Training Seminar, May, 1995, New York, New York

“Presenting the Case for Life, 1995 New York Capital Defenders Association, May, 1995, New York, New York

“Client Competence in a Criminal Case: Testing the Limits of Expertise- The Psychiatrist’s Opinion as Scientific, the Expert’s Foundation as Sufficient,” American College of Forensic Psychiatry, 13th Annual Symposium in Forensic Psychiatry, April 1995, San Francisco, California

“Recent Legal Developments in Capital Cases,” 1995 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1995, Monterey, California

“Using a Psychologist in a Capital Case,” 1995 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb. 1995, Monterey, California

“Keynote Address: Understanding the Backlash Against ‘Don’t Blame Me’ Defenses,” 1994 Indiana Public Defender Council Seminar, Sept. 1994, Indianapolis, Indiana

“Backlash Against the Consideration of Certain Mitigating Evidence and What To Do About It,” 1994 NAACP Legal Defense Fund Annual Capital Punishment Conference, July, 1994, Airlie, Virginia

“Recent Legal Developments in Capital Cases,” 1994 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1994, Monterey, California

“Recent Legal Developments in Capital Cases,” 1993 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1993, Monterey, California

“Taking Control o Your Case and Your Client,” American Bar Association, Criminal Justice Section, Indigent Defense lawyers Seminar, August, 1992, San Francisco, California

“The Client’s Life Story: The Key to Life, NLADA/Tenn. Assn. Crim. Defense Lawyers, 1992 Defending Death Penalty Cases, Mar. 1992, Nashville, Tennessee

“Investigating and Litigating Institutional Adjustment Issues,” 1992 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb. 1992, Monterey, California

“Brain Dysfunction Evidence in Capital Cases,” 1991 Brain Dysfunction and the Law Seminar, March, 1991, Sacramento, California

“Handling Evidence Problems and Pretrial Motions,” 1990 California Public Defenders Association, An Advanced Felony Practice Seminar, March, 1990, San Francisco, CA.

“Constructing a Penalty Phase Argument,” 1989 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb., 1989, Asilomar, California

“International Extradition and the Death Penalty,” 1988 National Association of Criminal Defense Lawyers Annual Conference, August, 1988, Boston, Massachusetts

“The Use of Mental Health Experts Throughout a Death Penalty Case,” 1988 Oregon Criminal Defense Lawyers Association Seminar, July, 1988 Portland, Oregon

“Penalty Phase Argument and Mitigation,” 1988 Oregon Criminal Defense Lawyers Association Seminar, July, 1988, Portland, Oregon

“Discovery and Investigation of Aggravating Evidence,” 1987 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb. 1987, Asilomar, California

“Penalty Phase Instructions,” 1987 CACJ/CPDA Annual Death Penalty Defense Seminar, Feb. 1987, Asilomar, California

REFERENCES

Matthew Rubenstein Project Director
Capital Resource Counsel Project
c/o Federal Public Defender
101 SW Main Street, Suite 1700
Portland, OR 97204
(503) 780-3535

Judy Clarke, Former Project Director
Federal Death Penalty Resource Counsel Project
Clarke Johnston Thorp & Rice, PPC
1010 2nd Ave Ste 1800
San Diego, CA 92101-4916
619-308-8484

Hon. Mark W. Bennett
District Court Judge
Federal District Court for the Northern District of Iowa
320 Sixth Street
Sioux City, Iowa 51101
712-233-3909

Stephen S. Bright
Southern Center for Human Rights
83 Poplar Street, NW
Atlanta, Georgia 30303-2122
404-688-1202

George Kendall
Squire, Sanders & Dempsey (US) LLP
30 Rockefeller Plaza, 23rd Floor
New York, New York 10112
212-872-9834

William E. McDaniels, Esq.
Williams & Connolly LLP
725 Twelfth Street, NW
Washington, D.C. 20005
(202) 434-5055